

**SUBSTITUTE FOR
HOUSE BILL NO. 5485**

A bill to amend 1994 PA 451, entitled
"Natural resources and environmental protection act,"
by amending sections 31502, 31503, 31504, 31505, 31506, 31507,
31508, 31509, 31510, 31511, 31513, 31515, 31516, 31517, 31518,
31520, 31521, and 31523 (MCL 324.31502, 324.31503, 324.31504,
324.31505, 324.31506, 324.31507, 324.31508, 324.31509, 324.31510,
324.31511, 324.31513, 324.31515, 324.31516, 324.31517, 324.31518,
324.31520, 324.31521, and 324.31523), sections 31502, 31503, 31504,
31505, 31507, 31508, 31510, 31511, 31513, 31515, 31516, 31517,
31518, 31520, 31521, and 31523 as added by 1995 PA 59, section
31506 as amended by 1995 PA 100, and section 31509 as amended by
2004 PA 325, and by adding sections 31506a, 31509a, 31509b, 31517a,
31518a, 31518b, 31518c, 31518d, 31528a, and 31528b.



THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

Sec. 31502. (1) ~~"Abandonment" means an affirmative act on the part of an owner to discontinue maintenance or operation of a dam.~~ **"Additional spillway capacity" means modification to an existing spillway or construction of an auxiliary spillway to increase flow conveyance capabilities of the dam.**

(2) ~~"Administrative procedures act of 1969" means Act No. 306 of the Public Acts of 1969, being sections 24.201 to 24.328 of the Michigan Compiled Laws.~~ **the administrative procedures act of 1969, 1969 PA 306, MCL 24.201 to 24.328.**

(3) "Alteration" means a change in the design of an existing dam that directly affects or may directly affect the structural integrity of a dam.

(4) "Appurtenant works" means the structure or machinery incident to or annexed to a dam that is built to operate and maintain a dam, including ~~spillways,~~ **any of the following:**

(a) **Spillways**, either in a dam or separate from the dam. ~~low~~

(b) **Low** level outlet works. ~~and water~~

(c) **Water** conduits such as tunnels, pipelines, or penstocks, located either through the dam or through the abutments of the dam.

(5) "Auxiliary spillway" means a secondary spillway ~~which that is operational at all times and does not require stoplog removal or gate manipulation.~~ **designed to activate or be operated only during large flood flow events.**

(6) "Dam" means an artificial barrier, including dikes, embankments, and appurtenant works ~~that impounds,~~ **meets all of the following requirements:**

(a) **Impounds**, diverts, or is designed to impound or divert water or a combination of water and any other liquid or material in



1 the water. ~~that is~~

2 (b) Is, or will be when complete, 6 feet or more in height. ~~and that has~~

4 (c) Has or will have ~~an~~ 1 of the following:

5 (i) An impounding capacity at design flood elevation of 5
6 surface acres or more. ~~Dam~~

7 (ii) An impounding capacity at design flood elevation of 15
8 acre-feet or more.

9 (7) Dam does not include a storage or processing tank or
10 standpipe constructed of steel or concrete, a roadway embankment
11 not designed to impound water, or a dug pond where there is no
12 impoundment of water or waste materials containing water at levels
13 above adjacent natural grade levels.

14 (8) ~~(7)~~—"Days" means calendar days, including Sundays and
15 holidays.

16 (9) ~~(8)~~—"Design flood" means the design flow rate for spillway
17 capacity and dam height design.

18 (10) ~~(9)~~—"Design flood elevation" means the maximum flood
19 elevation that is considered in the design of the spillway capacity
20 and freeboard for a dam.

21 (11) ~~(10)~~—"Downstream toe elevation" means the elevation of
22 the lowest point of intersection between the downstream slope of an
23 earthen embankment and the natural ground.

24 Sec. 31503. (1) "Emergency action plan" means a plan developed
25 by the owner that establishes procedures for notification of the
26 department, public off-site authorities, and other agencies of the
27 emergency actions to be taken ~~prior to~~ before, during, and
28 ~~following~~ after an impending or actual failure of a dam.

29 (2) "Enlargement" means any change in or addition to an



1 existing dam ~~which~~**that** raises or may raise the design flood
2 elevation of the water impounded by the dam.

3 (3) "Failed dam" means a dam not capable of impounding water
4 at its intended level due to a structural deficiency.

5 (4) "Failure" means an incident resulting in an unplanned or
6 uncontrolled release of water from a dam.

7 (5) "Flood of record" means the greatest flow rate determined
8 by the department to have occurred at a particular location.

9 (6) "Freeboard" means the vertical distance between the design
10 flood elevation and the lowest point of the top of the dam.

11 (7) "Half probable maximum flood" means the largest flood that
12 may reasonably occur over a watershed ~~—~~and is derived from the
13 combination of hydrologic runoff parameters and the half probable
14 maximum ~~storm~~**precipitation** that produces the maximum runoff.

15 (8) "Half probable maximum ~~storm~~**precipitation**" means the
16 spatial and temporal distribution of the probable maximum
17 precipitation, divided by 2, that produces the maximum volume of
18 precipitation over a watershed.

19 (9) "Hazard potential classification" means a reference to the
20 potential for loss of life, property damage, and environmental
21 damage in the area downstream of a dam in the event of failure of
22 the dam or appurtenant works.

23 (10) "Height" means the difference in elevation measured
24 vertically between the natural bed of a stream or watercourse at
25 the downstream toe of the dam, or, if it is not across a stream
26 channel or watercourse, from the lowest elevation of the downstream
27 toe of the dam, to the design flood elevation or to the lowest
28 point of the top of the dam, whichever is less.

29 (11) "High hazard potential dam" means a dam located in an



1 area where a failure may cause serious damage to inhabited homes,
 2 agricultural buildings, campgrounds, recreational facilities,
 3 industrial or commercial buildings, public utilities ~~, main~~
 4 ~~highways, or in areas with a population density greater than or~~
 5 **equal to 5,000 people per square mile, interstate roads, other**
 6 **freeway roads, other principal arterial roads as defined in the**
 7 **National Functional Classification (NFC) system, class I carrier**
 8 ~~railroads, or~~ **where environmental degradation or natural resource**
 9 **damage** would be significant, or where danger to individuals exists
 10 with the potential for loss of life.

11 Sec. 31504. (1) "Impoundment" means the water held back by a
 12 dam.

13 (2) "Inflow design flood" means the flood hydrograph entering
 14 the reservoir that is used to design or modify a specific dam and
 15 its appurtenant works, including, but not limited to, sizing the
 16 spillway and outlet works and evaluating the maximum storage,
 17 height of the dam, and freeboard requirements.

18 (3) ~~(2)~~ "Low hazard potential dam" means a dam located in an
 19 area where failure may cause damage limited to agriculture,
 20 uninhabited buildings, structures, or ~~township or county~~ **minor**
 21 **collector roads, local roads, or nonrated roadways as defined in**
 22 **the National Functional Classification (NFC) system, where**
 23 environmental degradation would be minimal, and where danger to
 24 individuals is slight or nonexistent.

25 (4) ~~(3)~~ "Maintenance" means the upkeep of a dam and its
 26 **impoundment and** appurtenant works but does not include alterations
 27 or repairs.

28 (5) ~~(4)~~ "One-hundred year flood" means a flood that has a 1%
 29 chance of being equaled or exceeded in any given year.



(6) ~~(5)~~ "Owner" means a person ~~who~~ **that** owns, leases, controls, operates, maintains, manages, or proposes to construct a dam.

(7) "Probable maximum flood" means the largest flood that may reasonably occur over a watershed and is derived from the combination of hydrologic runoff parameters and the probable maximum precipitation that produces the maximum runoff.

(8) ~~(6)~~ "Probable maximum precipitation" means the theoretically greatest depth of precipitation for a given duration that is physically possible over a given size storm area at a particular geographic location at a certain time of year.

Sec. 31505. (1) "Removal" means the physical elimination of a dam or impoundment.

(2) "Repair" means to substantially restore a dam to its original condition and includes only ~~such~~ restoration ~~as~~ **that** may directly affect the structural integrity of the dam.

(3) "Riparian owner" means a person ~~who~~ **that** has riparian rights.

(4) "Riparian rights" means rights ~~which~~ **that** accrue by operation of law to a landowner on the banks of an inland lake or stream.

(5) "Significant hazard potential dam" means a dam located in an area where its failure may cause damage limited to isolated inhabited homes, agricultural buildings, structures, ~~secondary highways, short line or minor arterial roads or major collector roads as defined in the National Functional Classification (NFC) system,~~ railroads not classified as class I, or public utilities in areas with a population density less than 5,000 people per square mile, where environmental degradation may be significant, or where



1 danger to individuals exists.

2 (6) "Spillway" means a waterway in or about a dam designed for
3 the discharge of water.

4 (7) "Spillway capacity" means the maximum rate of discharge
5 that will pass through a spillway at design flood elevation.

6 ~~(8) "Two-hundred year flood" means a flood that has a 0.5%~~
7 ~~chance of being equaled or exceeded in any given year.~~

8 Sec. 31506. (1) Except as otherwise provided in subsections
9 (2) and (3), dams and impoundments in ~~the~~ **this** state are under the
10 jurisdiction of the department.

11 (2) The following are exempt from this part:

12 ~~(a) Projects licensed, projects that have preliminary permits,~~
13 ~~or projects for which an application for licensure has been filed~~
14 ~~under the federal power act, chapter 285, 41 Stat. 1063, 16 U.S.C.~~
15 ~~791a to 793, 796 to 797, 798 to 818, 820 to 824a, and 824b to 825r,~~
16 ~~if federal dam safety inspection provisions apply during the~~
17 ~~license period and the inspection reports are provided to the~~
18 ~~department.~~

19 ~~(a) (b)~~ Projects located on boundary waters under the
20 jurisdiction and supervision of the United States ~~army corps~~ **Army**
21 **Corps** of ~~engineers~~ **Engineers**.

22 ~~(b) (c)~~ Impoundments licensed pursuant to ~~under~~ part 115 that
23 contain or are designed to contain type III wastes as defined in
24 rules promulgated under that part.

25 (3) ~~Until January 1, 1998, a permit shall not be required~~
26 ~~under this part for the repair, reconstruction, or improvement of a~~
27 ~~dam, a portion of which is at least 75 years old, was damaged or~~
28 ~~destroyed by an act of God and is located in a county that has a~~
29 ~~per capita income of less than \$8,500.00. However, a person who is~~



~~performing a project for the repair, reconstruction, or improvement of a dam that is exempt from obtaining a permit under this subsection shall submit to the department and the joint capital outlay committee plans and specifications for the project. These plans and specifications shall be prepared by a licensed professional engineer and shall meet acceptable standards in the industry in order for a dam to be repaired, reconstructed, or improved. In reviewing plans and specifications for the project, the joint capital outlay committee may recommend environmental considerations to protect water quality such as underspill devices, minimum flow releases and removal of contaminated sediments that may be resuspended in the water column upon impoundment. Such contaminated sediments shall be disposed of in accordance with state law.~~For a dam licensed under the federal power act, 16 USC 791a to 825r, the registration and comprehensive evaluation report under sections 31509a and 31518a are not required if the owner has provided all copies of information required under sections 31509a and 31518a to the department. If safety of design or construction requirements under the federal power act, 16 USC 791a to 825r, are so contradictory with the requirements made by the department under this part that a compliance cannot be made that will meet both federal and state requirements, then the state requirements must be modified by the department sufficiently to make possible compliance with both the federal and state requirements. Documents submitted under this section and section 31506a that are designated critical energy infrastructure by the United States Department of Energy under section 215A(d) of the federal power act, 16 USC 824o-1, are not subject to the freedom of information act, 1976 PA 442, MCL 15.231 to 15.246.



1 Sec. 31506a. If a dam or impoundment was previously licensed
 2 or is currently licensed under the federal power act, 16 USC 791a
 3 to 825r, and the dam or impoundment subsequently comes under the
 4 jurisdiction of this state, the owner shall provide the department
 5 with the full inventory of information that was previously provided
 6 to the Federal Energy Regulatory Commission as part of the
 7 requirements for licensure under the federal power act, 16 USC 791a
 8 to 825r.

9 Sec. 31507. (1) A person shall not construct, enlarge, repair,
 10 reconstruct, alter, **or** remove ~~, or abandon any~~ a dam except in a
 11 manner provided for in this part.

12 (2) This section does not apply to maintenance performed on a
 13 dam that does not affect the structural integrity of the dam.

14 Sec. 31508. (1) ~~Except as otherwise provided in subsection~~
 15 ~~(2), a~~ **A** licensed professional engineer shall prepare all plans and
 16 specifications, except for minor projects undertaken pursuant to
 17 **under** section 31513.

18 (2) ~~A person who is not a licensed professional engineer may~~
 19 ~~prepare plans and specifications only for repairs or alterations to~~
 20 ~~a dam where the application is made by a nonprofit organization~~
 21 ~~under the following circumstances:~~ **Plans and specifications prepared**
 22 **under subsection (1) must include documentation that demonstrates**
 23 **that the licensed professional engineer or design team preparing**
 24 **the plans and specifications has successfully completed or been in**
 25 **consultation with licensed professional engineers who have, at a**
 26 **minimum, completed 5 similar projects, including any of the**
 27 **following project types:**

28 ~~(a) The nonprofit organization has assets of less than~~
 29 ~~\$30,000.00, is exempt from taxation under section 501(c)(3) of the~~



~~internal revenue code of 1986, 26 U.S.C. 501, and is not composed primarily of the owners of property adjacent to or contiguous to an impoundment.~~

~~(b) The proposed repairs or alterations have a projected total cost of less than \$25,000.00.~~

~~(c) The impoundment is open to the public and a notice of public access is posted.~~

(a) Construction of a new dam.

(b) Reconstruction of a failed dam.

(c) Enlargement of a dam.

(d) Complex alteration of a dam, such as significant rehabilitation or reconstruction of an existing dam.

(e) Removal of an existing dam.

Sec. 31509. (1) Except as otherwise provided in this part or as authorized by a permit issued by the department ~~pursuant to~~ **under** part 13, a person shall not undertake any of the following activities:

(a) Construction of a new dam.

(b) Enlargement of a dam or an impoundment.

(c) Repair of a dam.

(d) Alteration of a dam.

(e) Removal of a dam.

~~(f) Abandonment of a dam.~~

(f) ~~(g)~~ Reconstruction of a failed dam.

(2) An application for a permit ~~shall~~ **must** include **any** information that the department determines is necessary for the administration of this part **and a first-filling plan or refilling plan, as applicable**. If a project includes activities at multiple locations, 1 application may be filed for the combined activities.



(3) An application for a permit for construction of a new dam, reconstruction of a failed dam, or enlargement of a dam ~~shall~~**must** be accompanied by the following fees:

(a) For a dam with a height of 6 feet or more but less than 10 feet, \$500.00.

(b) For a dam with a height of 10 feet or more but less than 20 feet, \$1,000.00.

(c) For a dam with a height of 20 feet or more, \$3,000.00.

(4) An application for a permit for the repair, alteration, removal, or abandonment of a dam ~~shall~~**must** be accompanied by a fee of \$200.00, and an application for a permit for a minor project ~~pursuant to~~**under** section 31513(1) ~~shall~~**must** be accompanied by a fee of \$100.00.

(5) The department shall waive the fees under this section for applications from state agencies, department sponsored projects located on public lands, and ~~organizations of the type described in section 31508(2)(a) through (c).~~**any nonprofit organization that meets the following requirements:**

(a) **Has assets of less than \$30,000.00 and that is exempt from taxation under section 501(c)(3) of the internal revenue code of 1986, 26 USC 501.**

(b) **Is not composed primarily of the owners of property adjacent or contiguous to an impoundment.**

(6) The department shall forward fees collected under this section to the state treasurer for deposit in the land and water management permit fee fund created in section 30113.

(7) **At any time before an application is submitted under this section, an applicant for a permit may request, in writing, a preapplication meeting with the department. The preapplication**



1 meeting request must include the requested location of the meeting
2 and the appropriate fee as specified under this subsection. Not
3 later than 30 days after the preapplication meeting request is
4 received, unless an alternative timeline is agreed to by both
5 parties, the department shall meet with the applicant to review a
6 proposed project or a proposed permit application in its entirety.
7 A preapplication meeting must take place at the department's
8 district office for the district that includes the project site or
9 at the project site itself, as specified in the preapplication
10 meeting request.

11 Sec. 31509a. (1) The department shall establish a staggered
12 registration process that meets all of the following conditions:

13 (a) Is divided into 5 rounds, with the first round of
14 registrations beginning 6 months after the effective date of the
15 2025 amendatory act that added this section.

16 (b) Registers 1/5 of all owners of dams in this state each
17 round.

18 (c) Identifies the owners of dams that are subject to
19 registration in each round based on hazard potential classification
20 and other relevant considerations.

21 (2) Subject to subsection (1), an owner shall register all
22 dams owned by the owner with the department on a form and in a
23 manner prescribed by the department. The application for a
24 registration under this section must include all of the following
25 information:

26 (a) Proof of ownership of the dam.

27 (b) An asset management plan for all dams owned by the owner,
28 that includes all of the following information:

29 (i) An inventory of all dam assets.



1 (ii) An assessment of conditions, remaining life, and critical
2 deficiencies and failure modes, and a life cycle cost analysis.

3 (iii) An assessment of probability and consequences of dam
4 failure.

5 (iv) A list of funding sources adequate to cover estimated life
6 cycle costs.

7 (v) A performance evaluation that includes regulatory
8 compliance, inspection schedule, instrumentation monitoring, and
9 internal operations.

10 (c) A demonstrated compliance with this part that includes all
11 of the following:

12 (i) A current inspection report under section 31518 and a plan
13 and schedule approved by the department to address any deficiencies
14 identified in the inspection report, if applicable.

15 (ii) A current, comprehensive evaluation report under section
16 31518a, and a plan and schedule approved by the department to
17 address any deficiencies identified in the comprehensive evaluation
18 report, if applicable.

19 (iii) A current surveillance and monitoring plan under section
20 31518b.

21 (iv) A current operation and maintenance plan under section
22 31518c.

23 (v) A current safety and security plan under section 31518d.

24 (d) Any additional information that the department determines
25 is necessary for the administration of the part.

26 (3) A registration granted under this section is valid for 15
27 years. Not later than April 1 of the year the registration expires,
28 an owner shall submit an application for registration under
29 subsection (2).



1 (4) The department shall approve or deny an application for a
2 registration not later than 120 days after the application is
3 complete. The department shall deny an application for registration
4 that does not sufficiently demonstrate that the public health,
5 safety, welfare, property, or natural resources or the public trust
6 in those natural resources is protected.

7 (5) The department may revoke a registration, after notice and
8 opportunity for a hearing in accordance with the administrative
9 procedures act of 1969, for any of the following reasons:

10 (a) A violation of the terms of the registration or a change
11 in the condition of the dam.

12 (b) The owner failed to disclose relevant facts or otherwise
13 obtained a registration by misrepresentation.

14 (c) The dam is subject to any of the following:

15 (i) An order under section 31518(7).

16 (ii) An order to limit dam operations or an order for the
17 removal of the dam under section 31519.

18 (iii) An emergency order under section 31521.

19 (iv) Any other violation under section 31524.

20 (6) If the department revokes a registration under subsection
21 (5), the department shall notify the owner in writing of the
22 revocation not later than 30 days after the hearing and state the
23 deficiency and request additional information.

24 (7) If the department denies a registration under subsection
25 (4) or revokes a registration under subsection (5), the owner shall
26 submit a revised application for registration not later than 180
27 days after the notification is received under subsection (4) or
28 (6).

29 (8) An owner can transfer a registration to a new owner if



1 both of the following conditions are met:

2 (a) The new owner is willing and financially capable of
3 complying with the terms of the registration.

4 (b) The owner receives written approval from the department
5 for the transfer.

6 (9) The owner shall submit a request for transfer of a
7 registration under subsection (8) on a form and in a manner
8 prescribed by the department. The request for a transfer of a
9 registration must be accompanied by a written agreement between the
10 owner and new owner that states a specific date for the transfer of
11 responsibility.

12 Sec. 31509b. Beginning January 1, 2029, and not later than
13 January 1 every 3 years thereafter, the department shall adjust the
14 fees described in section 31509 by an amount as determined by the
15 state treasurer at the end of the preceding fiscal year, rounded to
16 the nearest \$10.00, to reflect the cumulative percentage change in
17 the Detroit Consumer Price Index from the most recent 3-year period
18 for which data is available for the Detroit-Warren-Dearborn area
19 from the Bureau of Labor Statistics of the United States Department
20 of Labor.

21 Sec. 31510. ~~(1) A person who wants to be notified of pending~~
22 ~~applications for permits issued under this part may make a written~~
23 ~~request to the department, accompanied by an annual fee of \$25.00.~~
24 ~~The fee shall be deposited in the state treasury and credited to~~
25 ~~the general fund.~~ **The department shall post on its website, and**
26 **establish a process to provide email notification of, both of the**
27 **following:**

28 ~~(2) The department shall prepare a biweekly list of the~~
29 ~~applications made during the previous biweekly period and shall~~



~~promptly mail copies of the list for the remainder of the calendar year to the persons who have requested notice and paid the fee under this section.~~

~~(3) The biweekly list shall state the name and address of each applicant, the legal description of the lands included in the applicant's project, and a summary statement of the purpose of the project.~~

(a) A list of pending applications for registration under section 31509a.

(b) Public notices and schedule of public hearings as described under section 31511.

Sec. 31511. (1) ~~Upon~~**On** receipt of an application for a permit under ~~this part, section 31509,~~ the department shall submit copies of the application ~~accompanied by~~**for a permit with** a statement ~~indicating that indicates~~ that the department may act ~~upon~~**on** the application **for a permit** without a public hearing unless a written request is filed with the department ~~within~~**not later than** 20 days after the submission for review. The department shall submit copies of the application to all of the following:

(a) The local unit of government where the project is to be located.

(b) The adjacent riparian owners.

(c) Any person considered appropriate by the department.

(d) Any person ~~who~~**that** requests copies.

(e) A watershed council, organized ~~pursuant to~~**under** part 311, of the watershed within which the project is located or ~~is to~~**will** be located.

(2) The department may hold a public hearing ~~upon~~**on** the written request of any of the following:



(a) An applicant.

(b) A riparian owner.

(c) A person or local unit of government that is entitled to receive a copy of the application pursuant to ~~under~~ subsection (1).

~~(3) A public hearing held pursuant to this section shall be held in compliance with the open meetings act, Act No. 267 of the Public Acts of 1976, being sections 15.261 to 15.275 of the Michigan Compiled Laws. Public notice of the time, date, and place of the hearing shall be given in the manner provided by that act. Additionally, the department shall mail copies of the public notice to the persons who have requested the biweekly list pursuant to section 31510, the person requesting the hearing, and the persons and local units of government that are entitled to receive a copy of the application pursuant to subsection (1).~~

Sec. 31513. (1) ~~The~~ **After providing notice and an opportunity for a public hearing under section 31511, the** department shall promulgate rules **in accordance with the administrative procedures act of 1969** to establish minor project categories for alterations and repairs that have minimal effect on the structural integrity of a dam. The department may act ~~upon~~ **on** an application and grant a permit for an activity or project within a minor project category, after an on-site inspection of the dam, without providing public notice.

(2) All other provisions of this part ~~shall be~~ **are** applicable to minor projects, except that a final inspection by the department or certification of the project by a licensed professional engineer ~~shall is~~ **is** not ~~be~~ required for a project completed under a permit granted pursuant to ~~under~~ subsection (1).

Sec. 31515. (1) Except as otherwise provided in this section,



1 a permit ~~issued~~**granted** by the department under this part ~~shall~~
 2 **must** require that plans and specifications be approved by the
 3 department before construction begins. The department shall approve
 4 or reject complete plans and specifications ~~within~~**not later than**
 5 60 days after ~~their receipt.~~**the plans and specifications are**
 6 **received.** The permitted activity ~~shall~~**must** be completed within a
 7 specified time not to exceed 2 years after the date ~~of issuance of~~
 8 the permit **is granted.** ~~Upon~~**On** the written application of the
 9 permittee, and for good cause shown, the department may extend the
 10 time for completing construction. The permittee shall notify the
 11 department at least 10 days before beginning construction and shall
 12 otherwise notify the department as the department may require.

13 (2) ~~A~~**The permittee shall not implement a** change in approved
 14 plans and specifications ~~shall not be implemented~~ unless the
 15 department gives its prior approval. The department shall approve
 16 or reject changes in plans and specifications ~~within~~**not later than**
 17 30 days after the **department receives the** request for the changes.

18 (3) A permit is effective for the length of time specified in
 19 the permit unless ~~it~~**the permit** is revoked ~~pursuant to~~**under** this
 20 part. The department may renew a permit.

21 (4) A permit to alter, repair, or construct a new dam,
 22 reconstruct a failed dam, or enlarge the surface area of an
 23 impoundment by more than 10% may specify the terms and conditions
 24 including, but not limited to, requirements for minimum flows, cold
 25 water release, impoundment fluctuations, portage, contingency
 26 plans, and conditions under which the work is to be performed. The
 27 terms and conditions of a permit ~~shall~~**must** be effective for the
 28 life of the project. The department may consider, in issuing a
 29 permit, any mitigating measures in conjunction with the permitted



activities and may make recommendations as to **means of** fish passage that may be required by part 483.

(5) A permit to construct a new dam, ~~or to reconstruct a~~ failed dam, **or to enlarge, alter, or remove an existing dam** may require a performance bond to ~~assure~~**ensure** completion of the project or to provide for complete or partial restoration of the project site, as determined by the department in rules promulgated by the department.

(6) ~~A permit may be suspended, revoked, annulled, withdrawn, recalled, canceled, or amended after~~ **After** a hearing **is held in accordance with the administrative procedures act of 1969, the department may suspend, revoke, or modify a permit** for a violation of ~~any of its provisions, a violation of the permit, this part, a violation of~~ **or** a rule promulgated under this part, **or for** any misrepresentation contained in the application **for the permit**. ~~Hearings shall be conducted by the department in accordance with the provisions for contested cases in the administrative procedures act of 1969.~~

Sec. 31516. (1) ~~Spillway~~ **Subject to subsection (4), spillway** capacity ~~shall~~**must** meet the following minimum criteria:

(a) Low hazard potential dams ~~shall~~**must** be capable of passing the 100-year flood, or the flood of record, whichever is greater.

(b) Significant hazard potential dams ~~shall~~**must** be capable of passing the ~~200-year~~ **half probable maximum** flood, or the flood of record, whichever is greater.

(c) High hazard potential dams ~~, less than 40 feet in height, as measured from the 200-year design flood elevation to the lowest downstream toe elevation, shall be capable of passing the 200-year flood, or the flood of record, whichever is greater.~~



~~(d) High hazard potential dams, 40 feet or greater in height, as measured from the 200-year design flood elevation to the lowest downstream toe elevation, shall~~ **must** be capable of passing the half probable maximum flood, ~~-. The half probable maximum flood criterion may be reduced to not less than the 200-year flood, with proper documentation evidencing a failure of a dam under half probable maximum flood conditions will not cause additional flood damage or loss of life.~~ **or the flood of record, whichever is greater.**

~~(d) (e)~~ Spillway design capacity ~~shall~~ **must** not be less than the flood of record.

(2) Freeboard ~~shall~~ **must** be considered when determining spillway capacity.

(3) If a dam cannot pass the design flood, ~~an auxiliary~~ **additional** spillway **capacity** must be provided. The owner must document, to the satisfaction of the department, that the dam has sufficient spillway capacity, and that proper means are available to operate the spillway or spillways during the design flood.

(4) The criteria described under subsection (1) may be reduced in accordance with a site-specific, consequence-based, or risk-based inflow design flood study completed in a manner approved by the department.

Sec. 31517. (1) Except for minor projects authorized ~~pursuant to~~ **under** section 31513, the owner shall do both of the following:

(a) ~~Within~~ **Not later than** 10 days after the completion of a new, reconstructed, enlarged, repaired, or altered dam, notify the department of its completion.

(b) ~~Within~~ **Not later than** 20 days after submitting the notice of completion, file with the department as-built plans and a statement signed by a licensed professional engineer ~~certifying~~



1 **that certifies** that the project was constructed in conformance with
 2 plans and specifications approved by the department.

3 (2) The department shall inspect the project and ~~shall provide~~
 4 the owner with written notice of final approval **after the project**
 5 **is completed** if the project is determined to have been completed in
 6 accordance with approved plans, specifications, and permit
 7 conditions. **The department may also inspect the project during**
 8 **construction of the project.**

9 (3) If the project is determined not to be completed in
 10 accordance with **approved** plans, ~~and specifications approved by the~~
 11 ~~department~~ **specifications**, and permit conditions **described under**
 12 **subsection (2)**, the department shall provide notice to the
 13 permittee as to the specific reasons the department determines the
 14 project not to be completed in accordance with ~~these~~ **the** plans,
 15 specifications, or **permit** conditions. The department may then take
 16 enforcement action as provided in this part.

17 (4) **Nothing in this act is construed to relieve an owner of**
 18 **the legal duties, obligations, or liabilities incident to the**
 19 **ownership or operation of a dam or impoundment.**

20 **Sec. 31517a. (1) An owner shall prepare and keep current**
 21 **operations and maintenance records for each dam owned by the owner.**
 22 **The operations and maintenance records must, at a minimum, contain**
 23 **all of the following:**

- 24 (a) **A brief description of the major elements of the dam.**
- 25 (b) **Operation procedures during normal and high flows.**
- 26 (c) **Emergency action plans.**
- 27 (d) **Copies of recent inspection reports submitted to the**
 28 **department under section 31518.**
- 29 (e) **Maintenance work order procedures.**



1 (f) Sample maintenance and inspection forms.

2 (g) Key contact information.

3 (2) An owner shall prepare and keep current a surveillance and
4 monitoring plan for each dam owned by the owner.

5 (3) An owner shall maintain all of the records described under
6 this section and make the records available to the department on
7 request.

8 Sec. 31518. (1) An owner shall submit to the department
9 inspection reports prepared by a licensed professional engineer
10 that evaluate the condition of the dam. The inspection report ~~shall~~
11 **must** be submitted as follows:

12 (a) Not less than once every ~~3 years~~ **year** for high hazard
13 potential dams.

14 (b) Not less than once every ~~4~~ **2** years for significant hazard
15 potential dams.

16 (c) Not less than once every 5 years for low hazard potential
17 dams.

18 (2) The department shall determine the hazard potential
19 classification ~~of~~ **for** all dams and ~~shall~~ establish an inspection
20 schedule. The **department shall notify the owner of each dam's**
21 **hazard potential classification, the effective date of each hazard**
22 **potential classification, and each dam's hazard potential history.**
23 **Not later than 30 days after the department's notice of a dam's**
24 **hazard potential classification under this subsection is received**
25 **by the owner, the owner shall provide the department with**
26 **information regarding how the owner will meet the requirements of**
27 **the dam's hazard potential classification, including, but not**
28 **limited to, spillway capacity, emergency action plan, inundation**
29 **mapping requirements, and an inspection schedule. An inspection**



1 schedule ~~shall~~ **developed under this subsection must** require annual
 2 submission of inspection reports for ~~approximately 1/3 of~~ all high
 3 hazard potential dams, ~~1/4~~ **1/2** of all significant hazard potential
 4 dams, and 1/5 of all low hazard potential dams. The department
 5 shall notify **the** owners in writing when inspection reports are due.
 6 The department may order additional inspection reports following an
 7 event or change in condition that could threaten a dam.

8 (3) An inspection report required by this section ~~shall~~ **must**
 9 include, at a minimum, all of the following:

10 (a) An evaluation of the dam's condition, spillway capacity,
 11 operational adequacy, and structural integrity.

12 (b) A determination of whether deficiencies exist that could
 13 lead to the failure of the dam.

14 (c) Recommendations for maintenance, repair, and alterations
 15 of a dam as are necessary to eliminate any deficiencies.

16 (d) **A schedule to address deficiencies that is approved by the**
 17 **department. An owner violates this part if the owner fails to**
 18 **address deficiencies in accordance with the schedule approved under**
 19 **this subdivision.**

20 (e) **An assessment of the appropriateness of the current hazard**
 21 **potential classification established under subsection (1) taking**
 22 **into consideration the current conditions that exist downstream of**
 23 **the dam. An assessment under this subdivision must consider**
 24 **conditions related to damage as identified under a significant**
 25 **hazard potential dam classification and serious damage as**
 26 **identified under a high hazard potential dam classification that**
 27 **might have changed since the effective date of the current hazard**
 28 **classification established under subsection (1).**

29 (f) **An assessment of operations and maintenance based on the**



1 requirements of the current operation and maintenance records
2 prepared under section 31517a.

3 (g) An evaluation of the risk or changes in risk of
4 significant hazard potential and low hazard potential dams, if
5 applicable.

6 (h) A review of the original design, construction,
7 maintenance, repair, and probable failure mode records of high
8 hazard potential and significant hazard potential dams, if
9 applicable.

10 (4) Instead of engaging a licensed professional engineer to
11 prepare an inspection report, local units of government or an
12 organization of the type described in section ~~31508(2)(a) through~~
13 ~~(e)~~ **31509(5)** may request the department to conduct a visual
14 inspection of a dam owned by that local unit of government and
15 prepare a report on the condition of the dam in accordance with
16 subsection (3). The department shall notify a requesting local unit
17 of government as to when the inspection is to occur.

18 (5) If an inspection report discloses the need for a more
19 detailed investigation or evaluation of certain dam features for
20 the purpose of determining the condition of the dam, the department
21 may order the completion and submission of that detailed
22 investigation or evaluation at the expense of the owner. An
23 investigation or evaluation required under this subsection ~~shall~~
24 **must** be conducted under the supervision of a licensed professional
25 engineer.

26 (6) If an owner does not submit an inspection report as
27 required by subsection (1) or conduct additional investigations if
28 required by subsection (5), the department or any person ~~who~~ **that**
29 would have life or property threatened by a breach of the dam may



1 have a report prepared and recover the costs of preparing the
 2 report in a civil action. ~~commenced in a court of competent~~
 3 ~~jurisdiction.~~ This subsection does not limit the right of any
 4 person to bring a cause of action ~~in a court of proper jurisdiction~~
 5 to compel an owner to comply with the requirements of this part.

6 (7) If, based on the findings and recommendations of the
 7 inspection report, ~~and an inspection by the department, or if~~ the
 8 department finds that a condition exists ~~which~~ **that** endangers ~~a~~ **the**
 9 dam, ~~it~~ **the department** shall order the owner to take actions that
 10 the department considers necessary to alleviate the danger.

11 **Sec. 31518a. (1) An owner shall submit to the department a**
 12 **comprehensive evaluation report prepared by a licensed professional**
 13 **engineer that evaluates the overall safety of the dam. The**
 14 **comprehensive evaluation report must be submitted not less than**
 15 **once every 10 years on a schedule determined by the department.**

16 (2) The comprehensive evaluation report must include, but is
 17 not limited to, a detailed evaluation and recommendation for all of
 18 the following:

19 (a) The dam's condition, spillway capacity, operational
 20 adequacy, and structural integrity.

21 (b) The adequacy of the dam's original design and
 22 construction.

23 (c) The adequacy of the dam's operation and maintenance
 24 procedures.

25 (d) Probable failure modes and risk reduction measures.

26 (e) Conformance with current dam safety practices.

27 (f) Any deficiencies that exist that could lead to failure of
 28 the dam.

29 (g) Maintenance, repair, and alterations of a dam that are



1 necessary to eliminate the deficiencies described under subdivision
2 (f).

3 Sec. 31518b. (1) An owner shall prepare, and keep current, a
4 surveillance and monitoring plan and submit the plan to the
5 department for review. The surveillance and monitoring plan must be
6 consistent with standard engineering practices.

7 (2) A surveillance and monitoring plan must include, but is
8 not limited to, all of the following information:

9 (a) The name, address, and telephone number of the owner, and
10 any agent or employee of the owner, responsible for the operation
11 of the dam.

12 (b) Information necessary to evaluate probable failure modes
13 of the dam.

14 (c) An assessment of current and past surveillance and
15 monitoring data.

16 (d) Recommendations for any necessary analyses or remedial
17 actions.

18 (3) The owner shall notify the department of any concerning
19 findings of surveillance and monitoring data within 24 hours.

20 Sec. 31518c. An owner shall prepare, and keep current, an
21 operation and maintenance plan and submit the plan to the
22 department for review. An operation and maintenance plan must
23 include all of the following information:

24 (a) A description of the dam.

25 (b) Contact information for the dam owner and any agent or
26 employee of the owner that is necessary to the operation of the dam
27 and each individual's responsibilities.

28 (c) An inspection schedule and checklist for routine dam
29 safety inspections conducted by the owner.



(d) A description of normal and emergency dam operation procedures.

(e) A log of normal and emergency dam operation procedures.

(f) A description of normal and emergency dam maintenance procedures.

(g) A log of normal and emergency dam maintenance procedures.

(h) Contact information and notification procedures for upstream and downstream owners, if applicable.

Sec. 31518d. (1) An owner shall prepare and keep current a safety and security plan and submit the plan to the department for review. A safety and security plan must include all of the following information:

(a) A summary of all physical safety measures at the dam, including any signage, waterway barriers, safety fencing, railings, or other safety devices.

(b) A summary of all physical security measures at the dam, including security cameras, alarms, security fencing, gates, doors, barriers, or other security devices.

(c) A response plan for any safety and security issues at the dam, which must include, at a minimum, all of the following:

(i) Dam personnel detection and reporting procedures.

(ii) Notification flow charts and call lists.

(iii) Response procedures.

(iv) A safety and security incident report template.

(2) The owner shall notify the department of any safety or security incidents within 24 hours after the incident occurs.

Sec. 31520. (1) The owner ~~or his or her agent~~ shall advise the department and the affected off-site public authorities and safety agencies of any sudden or unprecedented flood or unusual ~~or~~



1 ~~alarming~~ circumstance or occurrence, **whether** existing or
 2 anticipated, that may affect the safety of the dam within 24 hours
 3 ~~of~~ **after** the flood, circumstance, or occurrence.

4 (2) The owner shall notify the department as soon as possible
 5 of any necessary emergency drawdowns, repairs, breaching, or other
 6 action being taken in response to an emergency condition.

7 Sec. 31521. (1) The department may issue **to an owner a written**
 8 emergency ~~orders as provided in this section. The department may,~~
 9 ~~by written notice, order an owner~~ **order that requires the owner** to
 10 immediately repair, draw down, breach, **remove**, or cease operation
 11 of a dam ~~where a~~ **if the** dam is in imminent danger of failure ~~and or~~
 12 is causing or threatening to cause harm to public health, safety,
 13 welfare, property, or the natural resources or the public trust in
 14 those natural resources.

15 (2) If an owner fails to comply with an **emergency** order **under**
 16 **subsection (1)**, or is unavailable **to** or ~~unable to~~ **cannot** be
 17 contacted, ~~then~~ the department may undertake immediate repair,
 18 drawdown, breaching, **removal**, or cessation of operation, as may be
 19 necessary to alleviate the danger. ~~, and~~ **The department** may recover
 20 from the owner the costs incurred in a civil action. ~~commenced in a~~
 21 ~~court of competent jurisdiction.~~ The department may terminate an
 22 emergency order ~~upon~~ **on** a determination in writing that all
 23 necessary emergency actions have been complied with by the owner
 24 and that an emergency no longer exists.

25 (3) ~~(2) When ordering~~ **In an** emergency actions ~~order~~ under
 26 subsection (1), the department may ~~specify~~ **do any of the following:**

- 27 (a) **Specify a** maximum drawdown level. ~~and~~
- 28 (b) **Specify** discharge rates. ~~and require sediment~~
- 29 (c) **Require any of the following:**

1 (i) **Sediment** surveys. ~~, water~~

2 (ii) **Water** quality sampling. ~~, monitoring, or any~~

3 (iii) **Monitoring.**

4 (iv) **Any** other action determined necessary by the department to
5 ensure adequate protection of the public health, safety, welfare,
6 property, or natural resources or the public trust in those natural
7 resources.

8 (4) The department may modify the requirements of an emergency
9 order if ~~, during the conduct of ordered actions, it~~ **the department**
10 determines that the modification is necessary to protect the public
11 health, safety, welfare, property, or natural resources or the
12 public trust in those natural resources.

13 (5) ~~(3) Upon~~ **Not later than 15 days after** the issuance of an
14 emergency order **under subsection (1)**, the department shall provide
15 the owner with an opportunity for a hearing ~~pursuant to~~ **under** the
16 administrative procedures act of 1969. ~~within 15 days of the date~~
17 ~~of its issuance.~~ **The department may proactively schedule a hearing**
18 **under this subsection, but the owner shall submit a petition to**
19 **request the hearing within 15 days after the issuance of an order**
20 **under this section before a hearing can be held.** At the hearing,
21 the department shall determine, based on information and fact, if
22 the emergency order ~~shall~~ **must** be continued, modified, or suspended
23 as necessary to protect public health, safety, welfare, property,
24 or natural resources or the public trust in those natural
25 resources.

26 (6) **A hearing held under subsection (5) does not preclude the**
27 **owner or department from immediately taking action as necessary to**
28 **alleviate danger of failure of a dam.**

29 Sec. 31523. (1) An owner shall prepare, ~~and keep current, on a~~



1 **form and in a manner prescribed by the department,** emergency action
 2 plans for all high and significant hazard potential dams owned by
 3 that person. **An owner shall annually review and update, as**
 4 **necessary, emergency action plans and submit the plans to the**
 5 **department.**

6 (2) Emergency action plans ~~shall~~ **prepared or updated under**
 7 **this section must** be submitted to the department, **county or local**
 8 **emergency management coordinators, and all local entities with**
 9 **zoning approval authority located within the inundated zone.**

10 (3) The applicable county or local emergency management
 11 coordinators shall review for consistency **any** emergency action
 12 plans **prepared or updated under subsection (1)** with the county or
 13 local emergency operations plan ~~prior to submission of those~~ **before**
 14 **submitting the** plans to the department.

15 (4) An emergency action plan ~~shall~~ **prepared or updated under**
 16 **subsection (1) must** be consistent with the applicable provisions of
 17 the affected county or local emergency operations plans and the
 18 Michigan emergency preparedness plan ~~as developed pursuant to under~~
 19 the emergency ~~preparedness act, Act No. 390 of the Public Acts of~~
 20 ~~1976, being sections 30.401 to 30.420 of the Michigan Compiled~~
 21 ~~Laws.~~ **management act, 1976 PA 390, MCL 30.401 to 30.421.**

22 (5) ~~Emergency~~ **An emergency** action plans ~~shall~~ **plan prepared or**
 23 **updated under subsection (1) must** include, but not be limited to,
 24 ~~the~~ **all of the following:**

25 (a) **The** name, address, and telephone number of the person, and
 26 of an alternate person, responsible for operation of the dam. ~~the~~

27 (b) **The** name and telephone number of **county or** local emergency
 28 management coordinators. ~~and a~~

29 (c) **A** listing of occupied facilities, buildings, and



1 residences that may be threatened with flooding due to a failure of
2 the dam.

3 (d) Mapping that is adequate to clearly delineate the areas of
4 inundation resulting from a failure of the dam.

5 (6) If a high hazard potential or significant hazard potential
6 dam is located on a river system with multiple dams, the owner
7 shall coordinate preparation, updating, exercising, and activation
8 of emergency action plans under this section with the owners of the
9 other dams on the river system.

10 (7) An owner shall exercise an emergency action plan prepared
11 or updated under this section at least once every 5 years.

12 Sec. 31528a. (1) The dam safety emergency fund is created
13 within the state treasury. The state treasurer may receive money or
14 other assets from any source for deposit into the fund. The state
15 treasurer shall direct the investment of the fund and credit to the
16 fund interest and earnings from fund investments. Money in the fund
17 at the end of the fiscal year remains in the fund and does not
18 lapse to the general fund. The department is the administrator of
19 the fund for auditing purposes.

20 (2) On appropriation, the department shall expend money from
21 the fund to take remedial or corrective actions that remove or
22 reduce significant safety risks posed by dams when an owner is
23 unable or unwilling to take remedial or corrective action. The
24 department and the department of attorney general may recover costs
25 expended from the fund under this subsection from an owner.
26 Recovered costs must be deposited in the fund.

27 (3) As used in this section and section 31528b, "fund" means
28 the dam safety emergency fund created under subsection (1).

29 Sec. 31528b. (1) The department shall establish a dam risk



1 reduction grant program as provided in this section.

2 (2) The program must provide grants to owners to complete any
3 of the following projects:

4 (a) Repair or alteration of a dam.

5 (b) Removal of a dam.

6 (c) Scoping and engineering plans associated with any of the
7 actions described in subdivisions (a) and (b).

8 (3) An owner shall apply to the program on a form and in a
9 manner prescribed by the department. To be eligible to receive a
10 grant from the program, the owner must be able to contribute
11 matching funds of at least 10%.

12 (4) As used in this section, "program" means the dam risk
13 reduction grant program created under subsection (1).